

CENTRAL EUROPEAN POLITICAL SCIENCE REVIEW

Political Science Quarterly of the Central European Political Science Alliance

CENTRAL EUROPEAN POLITICAL SCIENCE REVIEW

Central Europe passed through great changes after the fall of communism. Ten years after the transition, the democratic developments in the Central European countries produced many new achievements in the field of political science

Aims of CEPSR

- (1) The editors of CEPSR aim at supplying its readers with up to date information on the place and role that the Central European region has in an integrated Europe in the field of politics, economics, culture and structure.
- (2) We intend to provide a forum for the appearance of the results and conclusions of the best scientific works that treat the Central European region.

CEPSR will have thematic numbers.

Number 1: Central Europe in Europe

Number 2: Political Parties and movements in Central Europe

Number 3: Political Transition and Transformation in Central Europe

Number 4: Political Representation, Institutions and Actors

Number 5: Globalisation Regionalisation and Nations in Central Europe

Number 6: The Euro-Atlantic Intergration. Attitudes and Orientations

Number 7: Political Representation Actors and Institution

Number 8: Political Parties and European Integration

Number 9: The Future of Europe-Central European Integration

Number 10: The Process of Stabilization of Democracy in Central Europe

Number 11: The Role of Media in Central Europe and in Europe

Number 12: Participation, Movement and Human Rights

Number 13: Political Parties and the European Enlargement

Number 14: EU Enlargement and Cleavages in Central Europe

Number 15: Lessons from History and EU Accession for Central Europe

Number 16: Minority's Status Laws in the European Union and in Hungary

Number 17: European Standard of the Rights

Number 18: Public Policy in Central Europe

Number 19: Political culture and multiculturalism

Number 20: European identity and immigration

Number 21-22: Reinventing Central Europe I.

Number 23-24: Reinventing Central European Dilemmas

The editors of Central European Political Science Review therefore welcome the articles of political science researchers in the world, which are related to the Central European region or which carry a message for these countries.

For further information about contribution and subscription:
contact editor Janos Simon at janossimon11@gmail.com

Visit our website at: www.cepsr.eu



CEPSR 2022 Vol. 23 No. 90

Central European Political Science Review



Central European Political Science Review

QUARTERLY OF CENTRAL EUROPEAN POLITICAL SCIENCE ALLIANCE

Volume 23

Number 90

Winter 2022

NEW PARADIGM IN HUMAN SECURITY

MAIN ARTICLES

Janani Ramanathan Sara Petroccia Romina Gurashi
Emanuela Susca Daria D'Angelo Andrea Pitasi
Daniele Battista Diana Salzano Antonio Teti Maria
Rita Bartolomei

REPORTS AND CONFERENCES

7th ICMRSS – The Netherlands
Report on CPAC – Mexico

BOOK REVIEW

Csaba Cservák

**CENTRAL EUROPEAN
POLITICAL SCIENCE
REVIEW**

**2022
Winter**

Quarterly of Central European Political Science Alliance

**Volume: 23
Number: 90**

CONTENTS

NEW PARADIGM IN HUMAN SECURITY

Introduction by Janani Ramanathan, Sara Petroccia, Romina Gurashi: Towards a New Paradigm in Human Security	9
Emanuela Susca: Globalization before Globalization: The Surprising Paretian View of the Global	13
Daria D'Angelo: The Sociological Theory of Norbert Elias	29
Andrea Pitasi: The Global Trend of Convergent – (gtcok) Knowledge and the Chinese Paradox	49
Daniele Battista e Diana Salzano: Political storytelling and the “Giorgia’s Meloni case”	73
Antonio Teti: Psychology and the Virtual World: the behavior of the mind in the digital ecosystem	93
Maria Rita Bartolomei: Predictive Justice and Legal professions – A glimpse on the ethical and legal challenges of artificial intelligence	99
REPORT AND CONFERENCE	
7 th ICMRSS – Amsterdam, The Netherlands	117
Reports on CPAC – Mexico City – Mexico	119
BOOK REVIEW	
István Stumpf: Constitutional Exercise of Power and Constitutional Identity by Csaba Cservák	127
ABSTRACTS	135
ABOUT THE CONTRIBUTORS	139

Maria Rita Bartolomei

Predictive Justice and Legal Professions

A glimpse on the ethical and legal challenges of artificial intelligence

Introduction

In recent years, a wide debate has taken place on the prospects and risks of algorithmic assessments and decisions concerning individuals, notably by improving predictive models. The increasingly frequent application of artificial intelligence in every existential sphere is a fundamental source of social and legal change and one of the most important topics of both public and academic debate (Bartolomei, 2000). At present, a large body of literature analysing its various aspects is emerging: several recent theoretical approaches are showing an understanding of how the increasing digitalisation of the legal field is transforming and shaping the significance of the law, especially when principles such as fairness, reasonableness, legal protection, reliability, freedom, inclusion, accountability, impartiality, security and privacy are concerned.

Nonetheless, there appears to be a lack of theoretical approaches and empirical research exploring how the application of artificial intelligence and the use of databases in the judiciary – especially the so-called predictive justice – is radically changing lawyers' and judges' professional activities. This is an interesting theoretical challenge when we consider that justice is progressively influenced by the centrality of large bodies of data and their elaboration for predictive purposes. Precisely because it is a very topical issue, in 2002 the CEPEJ – European Commission for the Efficiency of Justice – was created by the Council of Europe. The Commission is working to face the new challenges for justice, judicial systems and public policy makers.

Pursuing its action to promote a responsible use of artificial intelligence in national judicial systems, it is exploring how cyberjustice¹ and predictive justice can be used to support the work of legal professionals and courts and ensure a better quality of justice,

1 "Cyberjustice" includes facilitating access to justice, improving communication between courts and legal professionals, assisting the judge or administering courts, whereas predictive justice is more at the crossroads of artificial intelligence, extensive data and open data.

while respecting fundamental rights and values, as well as ethical principles (CEPEJ Conference, 2018; CEPEJ Toolkit, 2019).

Drawing on literature on the topics, this paper focuses on the current relationship between predictive justice and the legal profession and, more generally, on the ethical and legal challenges of artificial intelligence and its application to justice. By presenting individual experiences and different viewpoints gathered in the field, I will try and discuss how lawyers and judges working in the Marche region of Italy are addressing the legal, ethical and social implications of the use of artificial intelligence in law.

Despite the various legislative interventions at national, European and international level, in fact, the relationship between law, ethics and artificial intelligence is still to be defined.

Without claiming to settle all debates on the topic, my work is a contribution, from an anthropological perspective to a better understanding of the multiple ways in which artificial intelligence is affecting our lives, the rule of law and future concepts of justice.

Research methods

As mentioned above, by presenting individual experiences and different viewpoints gathered in the field, I will try and discuss how lawyers and judges working in the Marche region of Italy are addressing the legal, ethical, and social implications of the use of artificial intelligence in law: semantic compliance, legal issues, challenges and difficulties in representing legal knowledge in software systems, and so on.

The research work was carried out from April 2020 onwards at different times, using qualitative methodologies, especially ethnographic interviews. Though very aware of the complexity and diversity of the professional expertise and experience, in order to simplify and speed up my work, I chose to interview only two categories of professionals living in the Marche region of Italy: lawyers and judges. Respondents were chosen as they seemed rather representative and because I could more easily access them. In total, until now, I have conducted 35 interviews with lawyers (20 men and 15 women) belonging to three different law courts (Ascoli Piceno, Fermo and Ancona) and 8 with judges presiding over the Marche courts.

I cannot address the subject in depth, nor explain my entire project and report all my findings here. So, I will limit myself to

offering some reflections on the topic based on a few outcomes. Specifically, I will use some excerpt from my interviews to illustrate my discussion and highlight the more relevant issues emerging from such discussion.

Predictive justice

The scientific discussion about the prospects and risks of algorithmic assessments and decisions concerning individuals, notably by improving predictive models, is still lively and articulate.

An exemplary case is represented by the increasingly frequent application of artificial intelligence in the judiciary, especially the so-called predictive justice. This is the possibility to predict the outcome of a judgment by means of specific algorithms processing a large amount of data extracted from case law (i.e. court decisions previously delivered) and, thus, the possibility of supporting a judge in the subsequent decision-making phase (Khanna, 2021; Maffeo, 2019; CEPEJ *European Ethical Charter*, 2018). All the information stored in dedicated databases – factual elements, legal arguments, judges' decisions and so on – should be used for the purpose of improving the efficiency and quality of the judicial system.

The result of a synthesis between technology, science and law, predictive justice is already known in some countries such as the United States, the United Kingdom and Canada. It has also arrived in Europe: a predictive investigation system is already active in Italy and various courts are adopting practices in this regard. There are now many platforms which, by adopting machine-learning and predictive-analysis algorithms, process huge amounts of data relating to tens of thousands of past procedures, aggregate them into functions of variables and, through operations unthinkable for a human being, indicate significant connections and frequencies (In Italy, for example, Sant' Anna School). They allow the identification of behaviours, orientation and recurrent strategies adopted by the participants in a proceeding (judges, experts, consultants, witnesses, counterparties, etc.), but also those from competing law firms. So, they provide crucial information which helps to develop successful litigation strategies, improve decision-making processes and, consequently, increase the efficiency, profits and power of large international law firms, ensuring they have an important competitive advantage in business and legal practice.

According to the CEPEJ: “Recent developments in digital justice appear as real opportunities to improve the quality and efficiency of justice. At the same time, they constitute new challenges for the respect of the fundamental principles of the trial, essential guarantees of our judicial systems, such as the primacy of the rule of law, the independence and impartiality of the judge, the principle of adversarial proceedings or the protection of fundamental freedoms” (*Cyberjustice and artificial intelligence used in the field of justice*).

We do, in fact, have a growing body of legal regulation on the subject. Let me just mention the main European regulatory documents on digital justice: COM/2008/329 which, defining digital justice, reads as follows: “The e-Justice approach uses ICT [Information and Communication Technologies] to improve citizens’ access to justice and to make legal action more effective, the latter being understood as any type of activity involving the resolution of a dispute or the punishment of criminal behaviour” (*Commission of the European Communities*, Brussels, 2008: 3); the European Council Conclusions: “Access to Justice – Seizing the Opportunities of Digitalisation” (European Commission, 2020, 2021). Worth mentioning is also the European Ethical Charter on the use of artificial intelligence in judicial systems, which was adopted in December 2018 by the CEPEJ.² For the CEPEJ it is essential to ensure that AI remains a tool in the service of the general public and that its application respects the following core principles: Principle of respect of fundamental rights; Principle of non-discrimination; Principle of quality and security;³ Principle of transparency, impartiality and fairness;⁴ and Principle “under user control”.⁵

Speaking about these issues most people fall into two broad categories: those who are absolutely in favour of the applications of the latest digital technologies and highlight mainly, if not exclusively,

2 The Charter provides a framework of principles that can guide policy makers, legislators and professionals when they grapple with the rapid development of AI in national judicial processes. It is accompanied by an in-depth study on the use of AI in judicial systems, notably AI applications processing judicial decisions and data.

3 In the processing of judicial decisions and data, this means using certified sources and intangible data with models conceived in a multi-disciplinary manner, in a secure technological environment.

4 Making data processing methods accessible and understandable, authorizing external audits.

5 Precluding a prescriptive approach and ensuring that users are informed actors and in control of their choices.

the positive aspects of digital justice; those who, on the other hand, insist on the problems that arise for the professional categories involved, especially in relation to fundamental human rights, universally shared ethical values and constitutional principles of each individual nation state.

In my sample of interviewees, attitudes and opinions towards predictive justice were quite balanced, in the sense that each interviewee responded in a rather balanced way, highlighting both the pros and cons of using new technologies in the judiciary. However, as you will see from the results I report, reflections on the critical aspects of the question decisively prevailed.

However, no one seems to be fully aware of the anthropological revolution we are witnessing. According to Antoine Garapon and Jean Lassègue (2020), a real symbolic revolution is taking place, that is a drastic transformation of the means through which we construct social meanings. Our lives are affected or, rather, are about to be completely changed by such technological advances, as are the meaning and role of the law and legal professions. In fact, what is at stake is not a mere adjustment of the right to technological innovation but, precisely because the growing digitalization contributes to a new way of producing meaning, we are moving towards a radical transformation of the law itself.

Pros and cons – outcomes

The Supporters of digital justice think that, when implemented in compliance with the European Convention on Human Rights (ECHR) and the Council of Europe Convention on the Protection of Personal Data, the application of AI can guarantee legal certainty and effectiveness.

By transforming jurisprudence into data:

“Some digital tools even offer a statistical analysis that can be used by lawyers to assess the likelihood of success in a particular case, to determine the amount of compensation awarded in similar cases, or even to adapt their strategy by using arguments that are known to be convincing” (P. P., lawyer, man).

And even:

“Undoubtedly legal tech can help lawyers to better structure proceedings and to automate and accelerate repetitive tasks and,

in general, facilitate and improve access to justice for most people experiencing a widespread exclusion from the law” (M. C., lawyer, woman).

Agreeing with Richard Susskind (2021), but confusing “remote hearings” and digital justice, a respondent stated that:

“AI and technology can enable online courts and online judgments to help people understand and enforce their rights. Dispute resolution in public courts, in fact, generally takes too long and costs too much; online courts can reduce the so-called “access to justice” problem, which is everywhere longstanding” (judge, man).

“The reduction of access to justice is a potential weakening of the rule of law and the application of AI in the field of justice can contribute to improve efficiency and quality” (P. L., lawyer, man).

When talking about these issues, five lawyers thought that:

“For our courts and their biblical times, the first desired advantage concerns the simplification and speeding up of proceedings”.

Two other lawyers believed that:

“The more predictable a sentence, the more the parties will be inclined to find quick conciliatory solutions or, in any case, to choose ADR (alternative dispute resolution systems)” (S. G., man; A. E., woman).

AI solutions are undeniably useful for crime prevention and some respondents have observed that automated predictions and decisions could be more precise and impartial than human ones:

“AI systems can avoid the typical fallacies of human psychology, the widespread human inability to process statistical data, as well as typical human prejudice concerning, for example, ethnicity, gender or social background” (S. G., lawyer, man).

Almost all respondents however agreed with the following sentence and thought that, beyond the real practical, organisational and economic advantages:

“Predictive justice raises ethical and legal questions and issues of merit and method” (women judge)⁶.

Focusing on critical concerns, most of the respondents highlighted the possibility that algorithmic decisions may be mistaken or discriminatory, thus leading to unfairness. In particular, the following issues emerge.

⁶ The judges’ statements quoted in this paragraph are not supported by reference to the interviewees’ initials as the judges agreed to grant interviews provided they could retain their anonymity.

a) *The actual impossibility, for both judges and lay people, to avoid AI solutions.*

Although in theory the current European legislation on privacy recognises the right to evade any decision taken by an intelligent system (Article 22 and Recital 71 of the GDPR 679/2016):

“In practice it is extremely complicated if not impossible to be able to exercise this right” (S. G., lawyer, woman).

The use of the COMPAS model (Correctional Offender Management Profiling for Alternative Sanctions)⁷ to profile the level of risk of recidivism, for example, implies that:

“The judge may decide to deprive an individual of his freedom based on an algorithmic processing rather than following a human judgment” (D. P., lawyer, woman).

The software, in fact, often reproduces the discriminations already at work within the culture (see *Paris Innovation Review*). Some scholars, for example, have shed light on the racial inequity in eligibility in current relief laws: they find that the share of Black Americans eligible for automatic relief is lower than White Americans, reproducing racial disparities in criminal records (Mooney, Skog, Lerman, 2022). As many investigations, inquiries and experiments have shown, AI solutions are not infallible and can sometimes amplify prejudice and injustice or even create new ones (Dressel, Farid, 2018).

b) *The questionable selection of data.*

Many respondents – especially judges – have underscored the possibility that algorithmic decisions may be mistaken or discriminatory, thus leading to unfairness. We must not forget, in fact, that data mining involves both the extraction of useful information (sometimes implicit and/or hidden) from large amounts of already structured data following its preparation, transformation and filtering (data cleaning), and its further processing in order to discover correlations and, therefore, particularly significant patterns or regularities in relation to single individuals. However, the concepts of information and meaning are closely related to the application field in which the data mining is performed.

Consequently:

“Data may be considered relevant or not according to the program in use and its selection criteria” (judges, man).

⁷ A software program which considers approximately thirty different factors, determines whether a suspect should be jailed before trial or not, or assesses the likelihood of recidivism.

This means that the selection of data and its relevance could be limited. In any case, it is arbitrary and certainly de-contextualised.

“The claimed neutrality of algorithms is a chimera, as they mirror the data that feed them. Their results, therefore, depend on the type of data that is entered” (judge, woman).

“The results, therefore, are rather approximate and easily susceptible to errors and distortions, as well as to injustice and discrimination” (M. C., lawyer, woman).

Sometimes algorithms use data, which is not strictly related to jurisprudence, for instance when they are using the identity of judges for profiling purposes or are providing statistics on court decisions based on the judge. But, whatever the system, it is problematic to consider legal data, the primary characteristics of a dispute and its contextual elements on the same level.

c) The principle of transparency.

Another hotly debated issue concerns the principle of transparency of automated decisions. The request for transparency – together with other principles: inclusion, responsibility, impartiality, reliability, security and privacy – represents a fundamental ethical premise (Rome Call for AI Ethics, 2020).⁸ Nevertheless, to exercise the right to object to the automated process (Article 21 of the GDPR), the right to express one’s opinion and, therefore, to contest an algorithmic decision (Article 22 of the GDPR) and any judicial error, it is essential to know not only the logical process, but also all the data which has been used to create the decision-making infrastructure, especially for profiling purposes (Article 4 of the GDPR) (Palmirani, 2020).

“All the data means data of all types: personal, non-personal, mixed, statistical, synthetic, etc., including metadata captured automatically by the various devices” (judge, man).

Unfortunately:

“I think that the right of access to data and to the procedure cannot be effectively exercised” (S. S., lawyer, man).

⁸ It is protected by the right to explanation established by art. 22 (3) of the GDPR and, in general, by the principles of explainability and knowledge of the functioning of an expert system. When an artificial intelligence solution takes a decision capable of producing legally relevant effects in a person’s life, the associates – especially those directly involved – “should be adequately informed on the way in which this system works, on how to contact a human being with decision-making power and on how it is possible to control and correct the decisions of the system” (first point of the Resolution of the European Parliament 2020 (2019/2915 (RSP)).

This is true for two main reasons. First, the current expert systems have achieved a high deductive power:⁹ they are able to find the optimal solution to a specific problem even with incomplete data. Besides, their stochastic algorithms based on probabilistic and random models, approximate the most admissible event in a dynamic and changing way and, in any case, regardless of a causal link (Palmirani, 2020).

“If access to software algorithms is not granted, the trial is not fair” (M. B., lawyer, woman)

We should also add that the production of AI solutions is a strategic and decisive factor in competitiveness in the industrial world: they are always covered by copyright and industrial secrecy and, consequently, they are not easily available¹⁰. This means that the right to an explanation cannot be effectively exercised and that, therefore, the rationale behind the solutions suggested to the decision maker cannot be understood (Pagallo, 2020).

d) The principle of accountability.

In citing the “data controller”, art. 22 (3) GDPR implicitly identifies a person responsible for the way the algorithm works and its results, even in the presence of the interested party’s consent. The logic of accountability: it is also present in Articles 24 (1), 25 (1) and 32 and in Recital 2 of the GDPR as regards each person involved (owner, manager, employee, interested party); it represents one of the prerequisites for reliable AI set by the European Commission (2019); it is explicitly reiterated in the 2020 White Paper. In theory, making the data controller responsible for the operational and technical measures adopted means that he must be able to take into consideration the risks associated with the activity carried out and also to give an account of the evaluations underlying the choices then made. Furthermore, the approach used towards technological risk is the “principle of technological neutrality of the law”, which assumes that the purposes pursued by the regulation apply regardless of both the technology with which the data is processed and the comprehensibility of the algorithms (Pagallo, 2020; Reed, 2012).

⁹ Like the logical-deductive power of human beings through metalgorithms or inferential algorithms (i.e., capable of producing other algorithms in turn).

¹⁰ This means that the right to an explanation cannot be effectively exercised and that, therefore, the logic underlying the evaluations / solutions suggested to the decision maker cannot be understood.

Although, in accordance with the guarantees of respect for the fundamental rights and freedoms of the individual, the principle of accountability represents one of the pillars on which the entire regulatory framework is based:

“Judge and his assistants are unable to verify whether the predictive algorithm presents a distortion from origin, nor to identify the determinants of civil liability – contractual and extra-contractual – and even of criminal liability” (P. F., lawyer, man).

In this regard, considering the new achievements of information technology, i.e the development of computable models and predictive algorithms:

“We are witnessing a growing difficulty in addressing and adequately regulating the fundamental problem of liability with respect to the unjust damage which may be caused by AI solutions and, in general, to the risks associated with any type of automated activity”. (Judge, man).

To ensure the right to compensation for the damage suffered, some authors suggest the adoption of a mandatory insurance scheme capable of effectively protecting the injured party. However, this would still not solve the problem of the robots’ possible responsibility, as it would not be possible to consider all their potential responsibilities, unless a new legal status for them is established (Longo and Scorza, 2020: 209; Pagallo, 2020: 95, 97–98, 100).

Even a judge could pass an unjust sentence or for unclear reasons, just as he could say that he had decided in the same way as the software.

Thus, the dilemma remains whether the decision taken by a human judge is more just, transparent and impartial than that taken by AI systems.

e) The principle of independence.

The judge’s independence and freedom can therefore be threatened by software that could push to group conformism. Another major risk, in fact, is that of herd effect.

“Digital tools provide an in-depth analysis of previous case law. A judge will be able to observe what percentage of his colleagues have taken the same decision in similar cases. He will feel pressure to do the same or feel relieved of the responsibility of having to take a personal decision by following the majority” (T. P., lawyer, man).

Actually:

“It is very unlikely that a judge will take responsibility for reviewing the decision produced by an AI system or for taking a different one. The doubt that the facts could give reason to the software arises spontaneously and it is not easy to dispel” (A. M. lawyer, man).

“Respect for the principle of independence requires that each judge takes a personal decision based on autonomous and personal reasoning, while remaining in full control of all levels of the procedure” (P. P., lawyer, male).

Otherwise, justice could become unfair and dehumanised.

“Technology reflects the mathematical rigour of some formal aspects of the law, such as legality or procedure. It is doubtful, however, whether it can address more fundamental aspects of justice, such as fairness and the ability to judge” (T. V., lawyer, women).

“Algorithms’ work is based on previous situations: should the past dictate the future?” (C. F., lawyer, male).

f) Constitutional issues

Many lawyers wonder whether:

“It is legitimate, constitutionally acceptable and democratically sustainable for a judge to base his decision on the evaluations elaborated by imperfect and secret algorithms, whose operating logic he is unaware of and with respect to which he is unable to establish whether or not do they observe the due process rules?” (F. V., lawyer, man).

Many respondents pointed out that even a judge could pass an unjust sentence or for unclear reasons, just as he could say that he had decided in the same way as the software. But especially in the case of a criminal trial, which is a detailed, unpredictable process:

“One cannot ignore the centrality of both the emotional dimension of judgment and the concept of subject in the Italian legal system” (judge, woman).

Unfortunately, there is no institutional subject appointed to assess whether the predictive capacity of AI solutions effectively reduces the risks of damage to people and property, nor to clarify the relationship between advantages and disadvantages of an application and its solutions.

“If only a handful of powerful firms have access to these digital tools, parties and lay people in general may find themselves on unequal terms when facing a judge” (P. P., lawyer, women).

Five judges stated that the reconstruction of a judge's interpretative tendencies can undermine the principles of impartiality and naturalness, as well as violate other constitutionally imposed and protected guarantees.

“One of the main risks posed by predictive justice is the replacement of the rule of law with the rule of application. In this way, the respect for procedural fairness and the adversarial debate are not guaranteed” (judge, women).

Furthermore, enabling automated decision-making processes in areas that require complex choices, based on multiple factors and on non-predefined criteria, increases the risk that the ethical-legal force of national and international regulatory systems will dissolve, preventing it from adequately exercising its social control functions and regulation of human behaviour.

Conclusions

Current literature, individual experiences, narratives and viewpoints gathered in the field clearly show just how the increasing digitalisation of justice has entailed a real revolution in the legal field and critically is transforming the legal professions. Legal expertise – both technical and professional – is losing much of its importance, whereas the ability to understand complex algorithms and the latest generation software is rather significant. In a quickly changing scenario, with a boundless legal and technical horizon, every single jurist struggles to orient himself and to exercise the function of guarantor of the law. Forensic ethics, professional secrecy and the awareness of one's role are also affected. We are facing an ongoing transformation of law practitioners into auxiliaries of economic strategies.

The right to explanation (both *ex ante* and *ex post*) represents a principle of protection and defense in terms of procedural guarantees recognised both by the Community legal system and by the ECHR (in particular, Articles 6 and 13), but the characteristic impossibility of most of the algorithms used to be known and/or understood, makes the ineffectiveness of the current regulatory framework on liability clear.¹¹ In fact, as evidenced by the 2019 report by a group

¹¹ According to Ugo Pagallo, the current rules on civil liability present three kinds of insurmountable problems: individuals damaged by the use of an AI system are penalised compared to cases in which the damage derives from interaction with other men or with conventional technologies; the damage caused by AI solutions often cannot be effectively contested to those who cause them, also due to the frequent impossibility of identifying the

of experts set up by the European Commission which proposed the adoption of new types of accountability for developers, suppliers and operators of AI systems in algorithmic ecosystems, including a new obligation to log their designs, the problems raised by algorithms and their multifaceted applications are not adequately addressed by current legislation; not even “with a simple extension of the legal regimes of strict liability”, especially since, with respect to some conducts, it is not possible to identify a responsible person, nor are there any hypotheses of extra-contractual civil liability for damages from a defective product (Longo and Scorza, 2020; Pagallo, 2020: 95, 97–98, 100).

Although the European Union is equipping itself with greater regulatory capacity in the field of AI than the rest of the world, the legal nodes present in the current “algorithmic society” are still numerous and relevant (Balkin, 2017). As I have tried to stress, the various formulations still remain vague, imprecise and non-binding; given the undoubted decrease in privacy that the development of technology brings with it, the internal and external limits of GDPR seem insurmountable. It is certainly not easy to identify a regulatory strategy – a sort of “algorithm-ethics” capable of transforming ethical principles into legal rules. Nonetheless, it is important to be aware of the fact that (at least in the Italian legal system), together with the *nomophylactic* function (regulatory competence guaranteeing compliance with the law and its uniform and rather unitary interpretation), the judiciary – especially the Court of Cassation – also performs a *nomopoietic* function: it produces a jurisprudential evolution of concrete law with reference to a specific factual context and in correspondence with changed historical social conditions and consequent protection needs (Valitutti, 2017).

Artificial neural networks trained on previous legal cases can acquire legal skills and apply them to new cases, even producing different solutions, but they certainly fail to innovate in this sense, that is, through a historically and socially contextualised creative act.

Since ignorance on the part of the general population of the value of data and potential of AI is profound, widespread and extremely worrying, the possibility to limit the arbitrary use of artificial intelligence and at least protect the respect for fundamental

perpetrator; European regulation “does not guarantee that the cheapest cost avoider of an AI system is the person who, even though insurance, must eventually internalise the cost for the damage caused by the system” (Pagallo, 2020: 100).

rights could be the recognition of the right to basic education in artificial intelligence. This would be a necessary, though not sufficient, right to attempt to bridge the imbalance of knowledge and power between those who manage AI and those who are subject to its solutions (Longo and Scorza, 2020: 231). There is a real risk that so-called “intelligent agents” may completely replace human beings and prefer the logic of profit where a few large subjects – multinationals and governments – have an infinite stock of large data through which they are able to predict our behaviour and guide our choices. Faced with this anthropological shift, a human being’s way of thinking, deciding, choosing and acting increasingly coincides with his artificial reproduction, and any type of national regulation loses its effectiveness against phenomena that are global.

To conclude, if we do not prepare to manage it to avoid its current and potential risks, artificial intelligence “could be the worst event in the history of our civilisation” (Hawking, 2017). Its slavish, irresponsible and unconscious application brings with it serious, looming and unmanageable dangers including new ways to allow the few to oppress and exploit the masses, to manipulate political debate, to create a constantly monitored society and to undermine the very democratic, guaranteed and libertarian foundations of our political and legal systems (Zuboff, 2019). Since the time of Aristotle all those who have dealt with political and moral philosophy have reiterated (albeit in different ways) the connection between the concept of responsibility and that of free will and freedom: the progressive subtraction of human responsibility could represent a corresponding and rather disturbing loss of the free self-determination of choices for and by contemporary men.

Literature

- Balkin, Jack M.** 2017. "The Tree laws of Robotics in the Age of Big Data." *Ohio State Law Journal*, vol. 78, no. 5, pp. 1217–1241.
- Bartolomei, Maria Rita.** 2020. *La realtà manipolata. L'impatto delle nuove tecnologie sui sistemi individuali e collettivi di pensiero e di azione*. Torino: L'Harmattan Italia.
- CEPEJ Conference.** 2018. *Artificial Intelligence at the Service of the Judiciary*, Riga (Latvia), vol. 27, September 2018.
- CEPEJ.** *European Ethical Charter on the Use of Artificial Intelligence (AI) in Judicial Systems and Their Environment*, 3–4 December 2018, <https://rm.coe.int/ethical-charter-en-for-publication-4-december-2018/16808f699c>.
- CEPEJ 2019.** *Toolkit For the Implementation of the Guidelines on How to Drive Change Towards Cyberjustice* (7 December 2016), <https://www.coe.int/en/web/cepej/justice-of-the-future-predictive-justice-and-artificial-intelligence>.
- Commission of the European Communities.** Brussels, 30.5.2008. https://edps.europa.eu/sites/edp/files/publication/com2008_329_en.pdf.
- Cyberjustice and artificial intelligence used in the field of justice.** <https://www.coe.int/en/web/cepej/cepej-working-group-cyber-just>.
- Dressel, Julia, Farid, Hany.** 2018. "The Accuracy, Fairness, and Limits of Predicting Recidivism." *Science Advances*, vol. 4, no. 1, pp. 1–5.
- European Commission.** 2019. COM/2019/168 final. Brussels, 8 April. <https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:52019DC0168&from=BG>.
- European Commission.** 2020. 11599/20 SC/ec 1 JAI.2, Brussels, 8 October. <https://data.consilium.europa.eu/doc/document/ST-11599-2020-INIT/en/pdf>.
- European Commission.** 2021. COM/2021/206 (Regulation of the European Parliament and of the Council of Europe), *Laying Down Harmonised Rules on Artificial Intelligence* (Artificial Intelligence Act), Brussels, 21 April. <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52021PC0206>.
- Garapon, Antoine – Lassègue Jean.** 2020. *Justice digitale*. Paris: Puf

- Hawking, Stephen.** 2017. *Will Artificial Intelligence help us or destroy us?* Web Summit. Lisbon. <https://www.evoluting-science.com/intelligent-machines-artificial-intelligence/stephen-hawking-web-summit-will-artificial-intelligence-help-us-or-destroy-us-00472>.
- Khanna, Bhishm.** 2021. *Predictive justice: using AI for Justice*, Centre for Public Policy Research.
- Khoci, Kerala.** [https://www.cppr.in/wp-content/uploads/2021/05/predictive-justice-using-ai-for-justice](https://www.cppr.in/wp-content/uploads/2021/05/predictive-justice-using-ai-for-justice_no.2.pdf), no.2.pdf, p.4.
- Longo, Alessandro – Scorza, Guido.** 2020. *Intelligenza artificiale. L'impatto sulle nostre vite, diritti e libertà*. Milano: Mondadori Education.
- Maffeo, Vania.** 2019. "Giustizia predittiva e principi costituzionali. i-lex." *Scienze Giuridiche, Scienze Cognitive e Intelligenza Artificiale*, no. 12, pp. 1–3. <http://www.i-lex.it/articles/volume12/fascicolo1-3/maffeo.pdf>.
- Mooney, Alyssa C. – Skog, Alissa – Lerman, Amy E.** 2022. "Racial equity in eligibility for a clean slate under automatic criminal record relief laws." *Law & Society Review*. Vol. 56, no. 3, pp. 398-417.
- Pagallo, Ugo.** 2020. "Algoritmi e conoscibilità." *Rivista di Filosofia del Diritto/Journal of Legal Philosophy*, vol. IX, no. 1, pp. 93–106.
- Palmirani, Monica.** 2020. "Big data e conoscenza." *Rivista di Filosofia del Diritto/Journal of Legal Philosophy*, vol. IX, no. 1, pp. 73–92. Paris: Innovation Review. <http://www.parisinnovation-review.com/articles-en/predictive-justice-when-algorithms-pervade-the-law>.
- Reed, Chris.** 2012. *Making Law for Cyberspace*. Oxford: Oxford University Press.
- Rome Call for AI Ethics.** 2020. <https://romecall.org/2020/03/02/rome-call-for-ai-ethics>.
- Sant'Anna School of Advanced Studies.** *Predictive justice. Towards a fully automated data-driven platform for Legal Analytics*. Institute of Law, Politics and Development, Pisa, <https://www.santannapisa.it/it/dipartimenti-eccellenza/embeds/predictive-justice>.
- Susskind, Richard.** 2021. *Online courts and the future of justice*. Oxford: Oxford University Press.

- Valitutti, Antonio.** 2017. *Il valore vincolante del precedente di legittimità. La Corte di cassazione tra nomofilachia e nomopoietica, La Nuova procedura civile*, 6. www.lanuovaproceduracivile.com
- Zuboff, Shoshana.** 2019. *The Age of Surveillance Capitalism: The Fight for a Human Future at the New Frontier of Power*. London: Profile Books Ltd.

Abstracts

Emanuela Susca: Globalization before Globalization: The Surprising Paretian View of the Global

We can distinguish three modes of approaching the topic of globalization. First, there is a mainly economic mode, which is variously based on a view of the economy as a true globalizing force. This perspective focuses not infrequently on the division of labor on a planetary scale. Second, there is the predominantly political mode of approach, which looks at the relationships between states in a realist way and pays particular attention to the exercise of hegemony and the struggle for hegemony itself within macro areas. Third, there is a social, or sociological, mode of approach. At the center, then, is a new awareness of being citizens of the world that, on closer inspection, concerns the dimensions of thinking and feeling, overcoming the old mind/emotions dualism. We have come to think of ourselves as inhabitants of the world because we feel that we are. the relevance of the Paretian idea that public opinions, with their orientations and reasoning, also matter should not be overlooked. Pareto was critically conscious of globalization. He fascinates with his ability to shed light on both the ambiguous link that can unite altruism and selfishness (or desire for peace and desire for hegemony) and the contradictions into which those who attempt to improve the world and who often feel invested with some special mission to do so can fall.

Keywords: globalization, globality, colonialism, world system analysis, Vilfredo Pareto

Daria D'Angelo: The Sociological Theory of Norbert Elias

At the origin of many obscurities and some contradictions in the use of two concepts, although central to his sociology: those of *fantasy* and *reality*. In this article I will attempt to reconstruct the meanings that Elias expressly attributes to these concepts. The object of research, the society, remained a place scattered with fortified citadels, dominated by philosophical and magical-religious traditions, that prevented the entry of modern scientific methodologies, or allowed them, but on the sole condition of orienting their cognitive action. Elias, as heir but, at the same time, free interpreter of the best Comtian tradition (1970: chap. I), wages a hard battle against the philosophical imperialism of his time and, at the same time, here too with a Comtian spirit, he outlines the profile, the role and importance of

sociology with respect to other human sciences and, also, in comparisons to biological and natural sciences. the fundamental model of the Eliasian sociology, the figuration one, is explicitly compared to a game model (1970: 155) and proposed as the fruit of an exercise of sociological imagination not blocked by traditional ways of thinking. The imbalance between the low accumulation of knowledge of the humanities and the great complexity of social processes forces the researcher to an imaginative effort far superior to the one needed in the natural sciences.

Keywords: Accumulation of knowledge, civilization, Comtian spirit and tradition, Eliasian sociology, demythization process, natural sciences.

Andrea Pitasi: The Global Trand of Convergent (gtcok) Knowledge and the Chinese Paradox

The goal of this work is to show one the most important trends of our times: the GTCok. Both the social and epistemological construction of scientific knowledge is turning more and more into a horizontal, global and cosmopolitan governance and policy model that is why science can imply cooperation – competition among paradigms, “schools”, epistemological and methodological streams and theories but not among nations or states. Science has no specific passport while of the best piece of evidence that a scenario is turning into a dictatorship is the nationalization of academic research and its vertical model. The science system according to its code and program generates autopoietically horizontal shapes while the politics system according to its code and program generates autopoietically vertical shapes which means that the structural couplings between the two systems are unlikely and usually not strategically relevant for the science one while the politics systems aims to couple with the science one to eliminate the risk of falsification of the political discourse while no political discourse can falsify a scientific theorem or model.

Keywords: globalization, convergence, system, complexity, knowledge.

Daniele Battista e Diana Salzano: Political storytelling and the “Giorgia’s Meloni case”

Storytelling, understood as the art of telling a story, has distant roots and has represented, during the course of time, an essential tool of social engagement. Today, we’re living in what could be defined as “the belle époque of narration”, in which there’s outmost attention to

stories and to shared narratives. Storytelling has experienced a rapid development thanks to the Internet, to social media and the development of information technology, involving, among the different social spheres, even the political one. This paper aims to analyse the role of emotions in the *internet mediated* politics, questioning the characteristics of political storytelling, a real magnetic field capable of catalysing the consensus of voters. After a brief review of the literature on the evolution of storytelling, we try to examine this phenomenon in a sociological perspective, highlighting the strong link with the emotional register. A specific focus is represented by the analysis of the emotional wave originated and conveyed by social networks on the “Giorgia Meloni” case. The success of the leader of Fratelli d’Italia owes much to the wise emotional interweaving of political storytelling and the ability to control the different platforms. The aim of the essay is to understand the role of storytelling in politics in the complex contemporary scenario and highlight how the ability to persuade and excite the electorate has become indispensable.

Keywords: political storytelling, political communication, emotions, social media, persuasion, electoral consensus

Antonio Teti: Psychology and the Virtual World: the behavior of the mind in the digital ecosystem

The advent of Cyberspace has made possible the materialization of potentialities inherent in the virtual world. One of these is the possibility of acquiring and maintaining anonymity, or the adoption of a status that can allow the subject to live a condition of superiority, a need deriving from the need to overcome personal frustrations, difficulties, dissatisfactions, stresses and hardships experienced in real life. The virtual world, therefore, can represent an extraordinary vehicle for escaping from the ailments of real life, facilitating the emergence of multiple psychopathological phenomena and amplifying the maladaptive ways of responding to individual distress.

Keywords: cyberspace, communication, community, present time, psychology, lifestyle, reality

Maria Rita Bartolomei: Predictive justice and legal professions - A glimpse on the ethical and legal challenges of artificial intelligence

In recent years, a wide debate has taken place on the prospects and risks of algorithmic assessments and decisions concerning individuals, notably by improving predictive models. An exemplary case is

represented by the increasingly frequent application of artificial intelligence in the judiciary, especially the so-called predictive justice. Enabling automated decision-making processes in areas that require complex choices, based on multiple factors and on non-predefined criteria, increases the risk that the ethical-legal force of national and international regulatory systems will dissolve, preventing it from adequately exercising social control and regulating human behaviour. By presenting individual experiences and different viewpoints gathered in the field, I will try and discuss how lawyers and judges working in the Marche region of Italy are addressing the legal, ethical and social implications of the use of artificial intelligence in law. Despite the various legislative interventions at national, European, and international levels, in fact, the relationship between law, ethics and artificial intelligence is still to be defined. Without claiming to settle all debates on the topic, my work is a contribution, from an anthropological perspective to a better understanding of the multiple ways in which artificial intelligence is affecting our lives, the rule of law and future concepts of justice.

Keywords: predictive justice, legal profession, artificial intelligence and ethical issues